

24CHLC44071 24CHLC44071

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-30

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****TENTATIVE RULING****

Motion for Summary Judgment

A plaintiff moving for summary judgment bears the initial burden of showing that there is no triable issue as to any material fact and that Plaintiff is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c.) Once that burden has been met, the burden shifts to the opposing party to demonstrate, through admissible evidence, the existence of a triable issue of material fact. Mere conclusions, argument, or unsupported denials are insufficient.

The Court finds that Plaintiff has met its initial burden.

The evidence submitted establishes the existence of the subject credit card account, Defendant's acceptance and use of the account, the governing Cardmember Agreement, the relevant account statements reflecting the transactions, interest, fees, and payments, the outstanding balance, and Plaintiff's entitlement to recover the balance of \$6,792.95.

Although Defendant did not file the Separate Statement of Disputed Material Facts required by Code of Civil Procedure section 437c, subdivision (b)(3), the Court has nevertheless considered Defendant's declaration and opposition papers on their merits.

Defendant does not dispute that he opened the subject credit card account, used the account, or received the benefit of the credit extended thereunder. Instead, Defendant's opposition focuses almost exclusively upon

Plaintiff's January 4, 2024 decision to reduce the available credit limit to \$6,400. Defendant asserts that this action adversely affected his credit and prompted his counsel to send correspondence to Plaintiff in February 2024 disputing Plaintiff's conduct. See exhibit D to Ms. Ross' declaration.

The Court has carefully reviewed Defendant's February 2024 correspondence. Although the letter broadly disputes Plaintiff's actions and generally challenges the account, it fails to identify any specific transaction that Defendant contends was unauthorized, any particular fee assessed in violation of the Cardmember Agreement, or any interest calculation that Defendant contends was erroneous. Likewise, Defendant's declaration filed in opposition to the motion generally disputes Plaintiff's accounting but similarly fails to identify any specific charge, fee, payment, or interest calculation that allegedly resulted in an incorrect balance.

Plaintiff has submitted the complete series of monthly account statements beginning with the billing cycle ending January 3, 2024, immediately preceding the reduction in Defendant's credit limit, through the statement reflecting the charge-off of the account for the billing cycle ending August 2, 2024. Each monthly statement separately itemizes purchases, payments, credits, interest charges, fees, account activity, applicable interest rates, and year-to-date totals for both interest and fees. The statements also set forth the governing terms applicable to the account. Plaintiff's business records establish that, as of the charge-off date, Defendant owed an outstanding balance of \$6,792.95 on the account

The Cardmember Agreement further provides a procedure for disputing billing errors and requires that disputes regarding transactions or billing statements be raised within the time specified by the agreement. Defendant has presented no evidence that he identified any specific transaction or billing error in accordance with those procedures. More fundamentally, even apart from the contractual dispute provisions, to date Defendant has failed to identify any particular transaction, fee, interest charge, or mathematical calculation that he contends is inaccurate.

Generalized assertions disputing the entire account, without identifying any specific factual error supported by admissible evidence, do not create a triable issue of material fact sufficient to defeat summary judgment.

Nor does Defendant explain how Plaintiff's decision to

reduce the available credit limit relieved Defendant of his contractual obligation to repay amounts admittedly borrowed and used under the agreement. Even assuming the reduction adversely affected Defendant's credit profile, Defendant has presented no admissible evidence demonstrating that such action extinguished, reduced, or otherwise offset the debt Plaintiff seeks to recover in this action.

Viewing the evidence in the light most favorable to Defendant, the Court concludes that Defendant has failed to produce evidence establishing a genuine dispute regarding any material fact. Defendant's opposition consists primarily of legal argument, conclusory assertions, and generalized disagreements with Plaintiff's conduct rather than evidence demonstrating that the amount claimed is inaccurate or that Plaintiff is otherwise not entitled to judgment.

Accordingly, the Court finds that no triable issue of material fact exists and that Plaintiff is entitled to judgment as a matter of law.

The Motion for Summary Judgment is GRANTED.

Plaintiff shall prepare, serve, and submit a proposed Judgment consistent with this ruling.